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AGENDA

Sovereignty and the Burden of Obligation

BACKGROUND GUIDE | UNGA



Letter from the Executive Board

Dear Delegates,

If you are reading this, you have already stepped into a committee that intends to question some of the most fundamental assumptions of the international legal order. We look forward to what promises to be an intellectually demanding and engaging simulation.

At first glance, the agendas may appear dense or theoretical. They are anything but. Both themes sit at the core of contemporary international relations and legal discourse. If you think these are mere Montevideo debates, you are gravely mistaken. Reciting the four criteria of statehood or quoting article 2(7) will not win you this committee.

Unfortunately no one can just tell you what this committee stands for, you must see it for yourself. This conundrum is everywhere. It is all around us, it is the indoctrination that has been pulled over your eyes to blind you from the truth, and we are here to decipher it.

This committee presents you with two background guides.

This is your red pill

How you approach them is entirely up to you. Delegates may choose to focus on one agenda, explore both, or bridge the two. The direction of the committee will ultimately be shaped by the intellectual initiative of the delegates themselves. Choose wisely, or at least convincingly. As for ROP, there is no ROP (more details to follow in committee).

We are not interested in hearing a chronological account of what your country has historically done, we already know, and so does ChatGPT. What we want to see is your ability to construct persuasive, logically coherent arguments that align with your foreign policy, however you interpret it. Let this background guide serve as context, but it is only the start of the rabbit-hole called research.

There is a difference between knowing the path and walking the path, and it is your responsibility to lead this committee on that. Explain why your proposed solutions are feasible, relevant and effective, and more importantly why they are better than the competing solutions in the room. Use technicalities, policies, legal doctrines and institutional mechanisms to frame your arguments. International law is often shaped not by broad principles alone, but by the interpretation of its smallest details.

We look forward to witnessing the arguments you build and the discussions you shape.

Warm Regards,
Aritra Karak(Chairperson)
Avyukt Harsh Agarwal(Vice Chairperson)
Sairam Dhal(Director)



Introduction to the United Nations General Assembly

The United Nations General Assembly (UNGA) is one of the six principal organs of the United Nations, established under Chapter IV of the UN Charter. It is the main deliberative, policymaking, and representative organ of the UN. All 193 UN Member States have equal representation in the General Assembly, making it the most inclusive body in the international system. Each Member State has one vote, regardless of population, economic power, or military strength.

The functions and powers of the General Assembly include discussing any questions or matters within the scope of the UN Charter, making recommendations to Member States and the Security Council, initiating studies and making recommendations to promote international cooperation in various fields, and promoting the progressive development and codification of international law.

The Charter of the United Nations

The United Nations Charter is the Organization's constitutional treaty: signed in San Francisco on 26 June 1945 and entering into force on 24 October 1945, after ratification by the five permanent Security-Council members and a majority of the other signatories the day now celebrated as United Nations Day. The Charter comprises a preamble and 111 articles grouped into 19 chapters, laying out UN purposes, organs and powers. Up to the simulation's 15 September 2008 freeze-date it had been formally amended three times (1965, 1968 and 1973) to enlarge the Security Council and Economic and Social Council and to adjust Article 109. Everything delegates will attempt in this committee must operate within this constitutional framework.



Relevant UN Charter Provisions

Article 2 – Principles

Article 2 establishes the foundational principles governing the UN and its Member States.

Article 2(1): "The Organization is based on the principle of the sovereign equality of all its Members."

Article 2(4): "All Members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any state, or in any other manner inconsistent with the Purposes of the United Nations."

Article 2(7): "Nothing contained in the present Charter shall authorize the United Nations to intervene in matters which are essentially within the domestic jurisdiction of any state, or shall require the Members to submit such matters to settlement under the present Charter; but this principle shall not prejudice the application of enforcement measures under Chapter VII."

Article 10 – General Assembly Powers

"The General Assembly may discuss any questions or any matters within the scope of the present Charter or relating to the powers and functions of any organs provided for in the present Charter, and, except as provided in Article 12, may make recommendations to the Members of the United Nations or to the Security Council or to both on any such questions or matters."

Article 11 – Questions Relating to Peace and Security

Article 11(1): "The General Assembly may consider the general principles of co-operation in the maintenance of international peace and security, including the principles governing disarmament and the regulation of armaments, and may make recommendations with regard to such principles to the Members or to the Security Council or to both."

Article 11(2): "The General Assembly may discuss any questions relating to the maintenance of international peace and security brought before it by any Member of the United Nations, or by the Security Council, or by a state which is not a Member of the United Nations in accordance with Article 35, paragraph 2, and, except as provided in Article 12, may make recommendations with regard to any such questions to the state or states concerned or to the Security Council or to both. Any such question on which action is necessary shall be referred to the Security Council by the General Assembly either before or after discussion."



Article 12 – Limitation While Security Council is Exercising Functions

Article 12(1): "While the Security Council is exercising in respect of any dispute or situation the functions assigned to it in the present Charter, the General Assembly shall not make any recommendation with regard to that dispute or situation unless the Security Council so requests."

Article 13 – Studies and Recommendations on Legal Development

Article 13(1)(a): "The General Assembly shall initiate studies and make recommendations for the purpose of: (a) promoting international co-operation in the political field and encouraging the progressive development of international law and its codification."

Article 14 – Peaceful Adjustment

"Subject to the provisions of Article 12, the General Assembly may recommend measures for the peaceful adjustment of any situation, regardless of origin, which it deems likely to impair the general welfare or friendly relations among nations, including situations resulting from a violation of the provisions of the present Charter setting forth the Purposes and Principles of the United Nations."

Introduction to the Agenda

From Sovereign Immunity to Sovereign Accountability

Sovereignty is both the foundation and the challenge of international law. In its traditional form, sovereignty meant absolute authority within a territory and freedom from external interference. The Peace of Westphalia in 1648 is often cited as the origin of the modern State system, establishing the principle that rulers had exclusive authority over their territories and populations, free from interference by external powers.

For centuries, sovereignty was understood primarily as a shield, a barrier protecting States from external judgment or accountability. This concept, known as sovereign immunity, meant that States could not be sued or held legally responsible in the courts or tribunals of other States without their consent. The principle of non-intervention, now codified in Article 2(7) of the UN Charter, reflects this protective dimension of sovereignty.

However, the twentieth century brought a fundamental shift. The League of Nations, established after World War I, represented the first serious attempt to create a system of collective security and to impose legal limits on State conduct. States agreed to submit disputes to arbitration, to avoid war except in certain circumstances, and to cooperate in maintaining peace.



The UN Charter marked a turning point: sovereignty was no longer just a shield but also a source of obligation. By becoming UN Members, States accepted binding legal duties to refrain from using force, to settle disputes peacefully, to respect human rights, to cooperate in maintaining international peace and security. Sovereignty now carried responsibilities. When States breached these obligations, they incurred international legal responsibility.

This shift from sovereign immunity to sovereign accountability is at the heart of this agenda. States still invoke sovereignty to resist external interference, but they can no longer hide behind sovereignty when they breach international law. The question is not whether States are accountable, but how accountability is established, what it requires, and who can demand it.

The Rise of Indirect Warfare

Traditional warfare between regular armed forces of States has become less common in the twenty-first century. Instead, conflicts increasingly involve non-State armed groups, militias, private military companies, and proxy forces. This shift has profound implications for State responsibility law.

In a conventional interstate war, attribution is straightforward: the armed forces of State A attack State B, and State A is responsible for any violations of international law committed by its forces. But modern conflicts rarely fit this model. Instead, States support, fund, train, equip, and coordinate with armed groups that operate in other States' territories or in contested zones. These groups may have some independence, their own command structures, and their own political or ideological goals, but they receive critical support from a State sponsor.

Examples are everywhere. In Syria, the government of Bashar al-Assad has received military support from Russia (including direct air strikes and ground forces) and Iran (through funding, advisors, and coordination with Hezbollah fighters). Rebel groups opposed to Assad have received support from Turkey, Saudi Arabia, Qatar, and Western States, including weapons, training, and intelligence. Kurdish forces in northern Syria have been supported by the United States in their fight against the Islamic State, while Turkey considers these same Kurdish forces a threat and has conducted military operations against them.

Scope and Mandate of the General Assembly

This committee operates within the mandate of the UN General Assembly as defined by the Charter provisions. It is important to understand what the General Assembly can and cannot do.



What the General Assembly CAN do:

1. ***Discuss and clarify legal principles.*** The Assembly can examine how State responsibility rules apply to contemporary conflicts, identify ambiguities or gaps in the law, and articulate how States understand their obligations.
2. ***Make recommendations to Member States.*** The Assembly can recommend that States comply with specific obligations, cease certain conduct, cooperate in fact-finding or accountability mechanisms, or take measures to prevent future violations.
3. ***Recommend measures to the Security Council.*** If a situation requires binding action or enforcement measures, the Assembly can recommend that the Security Council take up the matter.
4. ***Promote cooperation and coordination.*** The Assembly can recommend that States cooperate in sharing information, supporting investigations, coordinating responses to violations, or developing new legal instruments or mechanisms.
5. ***Contribute to the progressive development of international law.*** The Assembly can identify areas where the law is unclear or inadequate and recommend that the International Law Commission or other bodies undertake studies or draft new rules.

What the General Assembly CANNOT do:

1. ***Make legally binding decisions.*** Unlike Security Council resolutions adopted under Chapter VII of the Charter, General Assembly resolutions are recommendations. They carry political weight and can influence State behavior, but they do not create legal obligations by themselves.
2. ***Impose sanctions or enforcement measures.*** Only the Security Council can authorize mandatory sanctions, arms embargoes, or the use of force. The Assembly can recommend such measures, but it cannot implement them directly.
3. ***Determine legal responsibility conclusively.*** While the Assembly can express views on whether a State has breached international law, only a court or tribunal with jurisdiction over the parties (such as the ICJ) can make a legally binding determination of responsibility. The Assembly's role is political and normative, not adjudicatory.
4. ***Override Security Council functions (with limited exceptions).*** Article 12 restricts the Assembly from making recommendations on matters actively being handled by the Security Council, unless the Council requests such recommendations. However, the "Uniting for Peace" resolution (377 A(V)) allows the Assembly to step in when the Council is paralyzed by lack of unanimity among permanent members.



Conceptual Foundations of State Responsibility

Structure of an Internationally Wrongful Act

ARSIWA establishes that State responsibility arises when there is an "internationally wrongful act." Article 2 defines this concept beautifully:

"There is an internationally wrongful act of a State when conduct consisting of an action or omission:

- (a) is attributable to the State under international law; and
- (b) constitutes a breach of an international obligation of the State."

These two elements, attribution and breach are the foundation of all State responsibility analysis. Both must be present. If conduct cannot be attributed to the State, there is no State responsibility even if the conduct violates international law. If conduct is attributable but does not breach any obligation the State owes, there is no wrongful act.

Attribution

Attribution answers the question: "Whose conduct is this?" In domestic legal systems, this question is relatively straightforward. A corporation is liable for the acts of its employees when they act within the scope of their employment. A government department is responsible for the acts of its officials.

The basic principle is that conduct is attributable to the State when there is a sufficient connection between the actor and the State. The most difficult and contested attribution questions involve non-State armed groups, private military companies, and cyber actors, where the State's connection to the actor may be indirect, informal, or deliberately obscured.

Breach

Breach answers the question: "Did the State violate an international obligation it owes?" International obligations come from several sources:

1. *Treaties*: Bilateral or multilateral agreements that create binding legal commitments. For example, the UN Charter prohibits the use of force (Article 2(4)), the Geneva Conventions require humane treatment of persons in armed conflict, and the Genocide Convention requires States to prevent and punish genocide.



2. **Customary international law:** Rules that have emerged from consistent State practice accompanied by a belief that the practice is legally required (*opinio juris*). Many fundamental rules, such as the prohibition on torture and the principle of non-intervention, are considered customary law.
3. **General principles of law:** Fundamental legal principles recognized by civilized nations, such as the principle that no one should profit from their own wrong or that legal remedies should be available for legal wrongs.
4. **Unilateral declarations:** In some circumstances, a State's unilateral statement can create a binding obligation if it is clear, specific, and made with the intent to be bound.

A breach occurs when the State's conduct does not conform to what the obligation requires. This can involve an action (doing something prohibited) or an omission (failing to do something required). For example:

If State A's armed forces invade State B without legal justification, State A breaches Article 2(4) of the UN Charter by an action (invading).

If State A fails to prevent genocide occurring on its territory when it has the capacity to do so, State A breaches the Genocide Convention by an omission (failing to prevent).

The breach must be of an obligation that is in force for the State at the time the conduct occurs. A State cannot be held responsible for breaching an obligation that did not yet exist or that it had not yet accepted when the conduct took place.

Consequences

Once an internationally wrongful act is established (attribution + breach), legal consequences follow. ARSIWA Part Two addresses these consequences.

The most fundamental consequence is that the wrongful act "entails the international responsibility of that State" (Article 1). This means the State is legally accountable and must face certain obligations and potential responses from other States.

These consequences are not automatic. In practice, whether consequences are actually imposed depends on political will, institutional capacity, and the distribution of power in the international system. A powerful State may face few practical consequences even when its responsibility is clear, while weaker States may face severe sanctions for lesser violations. This disparity is one of the central normative challenges this agenda addresses.



The 2001 Codification by the International Law Commission

The International Law Commission's (ILC) work on State responsibility began in 1953 and continued for nearly half a century. General Assembly Resolution 56/83, adopted on 12 December 2001, took note of ARSIWA and commended the articles to the attention of governments "without prejudice to the question of their future adoption or other appropriate action." This phrasing reflects the Assembly's recognition that ARSIWA represents an important codification of the law while leaving open the question of whether the articles should eventually become a treaty.

The debate over ARSIWA's status:

There is ongoing debate about whether ARSIWA should be turned into a UN convention (a formal treaty open for signature and ratification by States). Arguments in favor of a convention include:

- A treaty would provide certainty and clarity, removing any doubt about which rules States have accepted.
- It would allow States to negotiate provisions that reflect contemporary concerns (such as cyber operations or climate responsibility) more clearly.
- It would create a formal mechanism for dispute resolution and interpretation.

Arguments against a convention include:

- The codification process was long and involved extensive compromises. Reopening negotiations could lead to a weaker text or could stall indefinitely.
- A treaty would allow States to make reservations (declarations that they do not accept certain provisions), potentially fragmenting the uniform rules that ARSIWA currently represents.
- ARSIWA's current status as a reference text widely cited by courts and tribunals gives it significant influence without the political baggage of treaty negotiations.

Recent scholarship describes this debate as "ossified," meaning it has reached a stalemate where neither side can muster the support needed to move forward with a convention or to definitively close the question.



Primary vs Secondary Rules

Legal theorists, notably the philosopher H.L.A. Hart, distinguish between primary rules and secondary rules in legal systems.

Primary rules are substantive obligations that tell actors what they must or must not do. In international law, primary rules include:

- The prohibition on the use of force (Article 2(4) of the UN Charter).
- The duty to prevent genocide (Article I of the Genocide Convention).
- The obligation to respect the sovereignty and territorial integrity of other States.
- The requirement to treat prisoners of war humanely (Geneva Convention III).
- The prohibition on torture (customary international law and multiple treaties).

Primary rules are found in treaties, customary international law, and general principles. They define what conduct is lawful or unlawful.

Secondary rules govern what happens when primary rules are breached. They answer questions like:

- When is a breach attributable to a State?
- What are the legal consequences of a breach?
- Who can demand accountability?
- What defenses or justifications are available?
- What remedies are required?

ARSIWA consists entirely of secondary rules. It does not create new substantive obligations (like "States must not use force" or "States must prevent genocide"). Instead, it explains what happens when such obligations are breached.

This distinction is important because it means ARSIWA applies across the board to all areas of international law. Whether the primary rule comes from the UN Charter, the Geneva Conventions, human rights treaties, environmental agreements, or customary law, the attribution, breach, and consequences analysis follows the same framework provided by ARSIWA.



Sovereignty as Burden

The modern understanding of sovereignty recognizes that sovereignty is not just a shield but also a burden. When States claim sovereignty, they also accept obligations under the UN Charter, under treaties they have ratified and under customary international law. These obligations limit what States can do, both within their own territories and in their relations with other States.

Sovereignty as burden means:

- States are accountable when they breach international obligations, even if the breach occurs within their own territory.
- States cannot hide behind non-intervention when they commit genocide, war crimes, or crimes against humanity.
- States that support, direct, or control non-State actors may be responsible for those actors' wrongful conduct.
- States that fail to prevent or punish serious violations may be held responsible for their omissions.

Powerful States often invoke sovereignty to resist accountability while demanding accountability from weaker States. States in the Global South often view sovereignty as essential protection against neo-colonial interference and selective enforcement of international law. Western States often emphasize accountability for human rights violations and aggression while resisting accountability in areas like economic coercion or extraterritorial military operations.

Attribution in Fragmented and Hybrid Conflicts

State Organs and Ultra Vires Conduct

ARSIWA Article 4 provides the basic rule: "The conduct of any State organ shall be considered an act of that State under international law, whether the organ exercises legislative, executive, judicial or any other functions, whatever position it holds in the organization of the State, and whatever its character as an organ of the central Government or of a territorial unit of the State."

This means that the conduct of any part of the State apparatus-the government, the armed forces, the police, the judiciary, local authorities, state-owned enterprises designated as organs is attributed to the State. The internal distribution of powers (federal vs unitary structure, central vs local government) does not matter for attribution purposes. If an entity is an organ of the State under that State's internal law, its conduct is the State's conduct.



Ultra vires conduct:

A critical question is whether the State is responsible for acts committed by its organs that exceed their authority or violate instructions. The answer, provided in ARSIWA Article 7, is yes: "The conduct of an organ of a State or of a person or entity empowered to exercise elements of the governmental authority shall be considered an act of the State under international law if the organ, person or entity acts in that capacity, even if it exceeds its authority or contravenes instructions."

This rule is essential for preventing States from avoiding responsibility by claiming that officials or military personnel acted without authorization. If a police officer tortures a detainee in violation of orders, the State is still responsible because the officer was acting in an official capacity. If soldiers commit war crimes during a military operation, the State cannot escape responsibility by claiming the soldiers disobeyed orders.

The key phrase is "acts in that capacity." The organ or official must be acting in an official capacity, using governmental authority or powers, even if they are misusing that authority. Purely private acts by an official (such as a diplomat's private business dealings) are not attributed to the State.

Examples:

- In the Corfu Channel case (1949), the ICJ held Albania responsible for mines laid in its territorial waters that damaged British warships, even though there was no evidence that Albania itself laid the mines. The Court found that Albania knew or should have known about the mines and failed to warn other States, constituting a breach of its obligation to notify dangers to navigation.
- In the Armed Activities in the Congo case (2005), the ICJ held Uganda responsible for acts committed by its military forces in the Democratic Republic of Congo, including killings, torture, and looting, even when these acts were committed by individual soldiers in violation of orders.

Financing, Training, and Arming Non-State Armed Groups

Even when attribution under Article 8 fails (because the State does not exercise sufficient control), a State may still be responsible under other ARSIWA provisions or under primary rules prohibiting certain forms of support to armed groups.



Financing armed groups:

Providing financial support to an armed group that commits violations of international law can violate primary rules (such as the prohibition on the use of force or the duty to prevent genocide) and can constitute aid or assistance under ARSIWA Article 16 (discussed in Section 4).

In the Nicaragua case, the ICJ held that the United States violated the prohibition on the use of force by organizing, financing, and training the Contra forces, even though the Contras' specific acts were not attributed to the US. The Court distinguished between:

- **Attribution:** The Contras' acts were not the US's acts (no effective control).
- **Primary violations:** The US's own acts (organizing, financing, training) constituted unlawful intervention and use of force.

This distinction is important: a State can be responsible for its own conduct (supporting the group) without being responsible for the group's conduct (specific attacks or atrocities).

Training and equipping armed groups:

Providing training and weapons to an armed group can also violate international law, depending on the context:

- If the group is engaged in an armed conflict and commits war crimes, the supporting State may be responsible for aiding or assisting those crimes (Article 16) if it acts with knowledge of the circumstances.
- If the group carries out attacks against another State, the supporting State may be responsible for violating the prohibition on the use of force.
- If the supporting State trains the group in interrogation techniques that amount to torture, the supporting State may be directly responsible for violating the prohibition on torture.

In the Armed Activities in the Congo case, the ICJ held that Uganda violated the prohibition on the use of force by providing military support to irregular forces operating in the DRC.



Private Military Companies and Proxy Militias

Private military companies (PMCs) and proxy militias occupy a grey zone in attribution law. They are not State organs, but they often operate closely with States, perform functions traditionally carried out by armed forces, and may be funded, directed, or coordinated by States.

The Wagner Group:

The Wagner Group, a Russian private military company, has operated in Syria, Libya, the Central African Republic, Mali, Sudan, and Ukraine. It has been described as a "proxy" for the Russian government, providing Russia with military capabilities while maintaining deniability.

Recent legal analysis of Wagner's operations in Ukraine highlights the attribution challenge:

- Wagner is not a State organ under Russian law. Russian law does not recognize or authorize PMC activity, so Article 4 (State organs) and Article 5 (empowered entities) do not apply.
- Wagner likely does not meet the effective control test under Article 8. While there is substantial evidence of coordination between Wagner and the Russian military (including co-location at military bases, communication between Wagner leaders and Russian officials, and integration into broader military operations), proving that Russian commanders exercised operational control over specific Wagner missions is difficult.
- Wagner might meet the overall control test. Evidence suggests that the Russian government provided funding (President Putin publicly stated that the Russian state "fully funded" Wagner), weapons, intelligence, and strategic direction. Wagner's operations appear coordinated with Russian military strategy. Under the overall control test, this might be sufficient for attribution.
- Alternatively, Wagner's operations might be attributed under Article 5 (empowered entities) or under a functional test that asks whether Wagner was effectively performing governmental functions (combat operations in support of Russian strategic interests) on behalf of the Russian state, even without formal legal authorization.

The inability of current attribution rules to clearly resolve Wagner's status has led scholars to propose new tests or modifications to existing tests, including multi-factor tests that assess material dependency, communication patterns, strategic coordination, and integration into military operations.



Proxy militias:

Similar questions arise for other armed groups:

- **Hezbollah in Lebanon and Syria:** Hezbollah receives funding, training, and weapons from Iran and operates in coordination with Iranian strategy. Is Iran responsible for Hezbollah's actions?
- **Houthi forces in Yemen:** The Houthis have received support from Iran, including weapons, training, and intelligence. To what extent is Iran responsible for Houthi attacks, including cross-border missile and drone strikes against Saudi Arabia and maritime attacks in the Red Sea?
- **Rapid Support Forces (RSF) in Sudan:** The RSF, led by Hemedti, has been linked to the UAE and previously received support from Wagner. When RSF forces commit atrocities in Darfur or Khartoum, which States (if any) bear responsibility beyond Sudan itself?

Cyber Attribution and Digital Plausible Deniability

Cyber operations present unique attribution challenges. Cyber attacks can be conducted by State intelligence agencies, by non-State hackers acting with State support or acquiescence, or by private actors with no State connection. Technical attribution (identifying the computer or network from which an attack originated) is difficult, and even when successful, it does not necessarily identify the State responsible.

The attribution problem in cyberspace:

- **Technical complexity:** Cyber attackers use proxies, virtual private networks, compromised computers in third countries, and other techniques to hide their location and identity. Even sophisticated technical forensics may not definitively identify the attacker.
- **Plausible deniability:** States can use non-State hackers ("patriotic hackers," criminal groups, hacktivists) to conduct attacks while maintaining deniability. Even when evidence points to State involvement, proving the level of control required under Article 8 may be impossible.
- **Attribution standards:** The effective control test is almost impossible to meet in cyberspace because proving that a State controlled specific cyber operations requires evidence (such as orders, tasking instructions, or real-time direction) that is rarely available. The overall control test might be more workable if sustained support, coordination, and integration into intelligence operations are sufficient, but this test has not been adopted by the ICJ.



The Tallinn Manual:

The Tallinn Manual on the International Law Applicable to Cyber Warfare (first edition 2013, second edition 2017) is a non-binding academic study produced by an international group of experts. It examines how existing international law, including ARSIWA, applies to cyber operations.

The Tallinn Manual acknowledges the attribution challenge and suggests that circumstantial evidence may be sufficient to prove attribution, including:

- Evidence that the cyber operation required resources or capabilities available only to a State.
- Evidence that the attack targeted information accessible only to a State intelligence agency.
- Evidence of past patterns of similar attacks linked to the State.
- Evidence of statements or admissions by State officials.

However, these forms of evidence still require judgment calls about whether they prove the requisite level of State control.

Contemporary cyber attribution debates:

- Attribution of the 2007 cyber attacks on Estonia (widely believed to have involved Russian state or non-state actors).
- Attribution of the Stuxnet malware attack on Iran's nuclear facilities (widely believed to have been conducted by the United States and Israel).
- Attribution of election interference operations, disinformation campaigns, and cyber espionage (involving Russia, China, North Korea, Iran, and other States).

For this committee, the cyber attribution challenge raises a fundamental question: are existing attribution rules adequate for cyberspace, or do they need to be clarified, modified, or supplemented? Should States develop cooperative attribution mechanisms to share intelligence and reach collective judgments? Should there be a presumption of responsibility when a cyber attack originates from a State's territory and the State fails to investigate or prevent such attacks?



De Facto Authorities and Transitional Regimes

ARSIWA Article 10 addresses conduct of insurrectional or other movements: "The conduct of an insurrectional movement which becomes the new government of a State shall be considered an act of that State under international law."

This rule means that if a rebel movement overthrows the existing government and takes power, the new government inherits responsibility for the movement's prior conduct. For example, if a liberation movement commits acts during an armed struggle and then becomes the government after independence, the new State is responsible for those acts.

But what about transitional situations where authority is contested or divided? What about "de facto authorities" that control territory but are not recognized as legitimate governments?

Sudan example:

After the 2019 coup that ousted Omar al-Bashir, Sudan was governed by a Transitional Military Council (TMC) and later by a transitional civilian-military government. In 2023, conflict broke out between the Sudanese Armed Forces (SAF), led by General Abdel Fattah al-Burhan, and the Rapid Support Forces (RSF), led by Hemedti.

Both factions claim to represent the legitimate government of Sudan. The SAF controls some territory, the RSF controls other territory, and effective central authority has collapsed in many areas. Which entity's conduct is attributable to "Sudan" for purposes of State responsibility?

ARSIWA does not provide a clear answer to this question. The ILC Commentary suggests that when there are competing claims to governmental authority, the conduct of the entity exercising de facto governmental functions in a particular territory may be attributable to the State, but this is a difficult and contested area of law.

Myanmar example:

In 2021, the Myanmar military (Tatmadaw) seized power from the elected civilian government in a coup. The military junta claims to be the legitimate government, while the National Unity Government (NUG), formed by elected lawmakers and opposition figures, claims to be the legitimate government in exile.



When the military commits atrocities against the Rohingya or against pro-democracy protesters, those acts are clearly attributable to "Myanmar" as a State. But if the NUG or armed groups allied with it commit acts, are those acts attributable to Myanmar? The answer depends on whether the NUG is considered to exercise governmental authority, which in turn depends on political and factual assessments about legitimacy and control.

These transitional and contested situations create legal uncertainty that this committee may wish to address. Should ARSIWA be clarified to provide guidance on attribution when governmental authority is divided or contested? Should there be a presumption that the entity exercising de facto control over territory and population is the relevant authority for attribution purposes?

Breach of International Obligations

Article 2(4) and the Prohibition of Use of Force

Article 2(4) of the UN Charter states that "All Members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any state, or in any other manner inconsistent with the Purposes of the United Nations." This is one of the most fundamental obligations in international law and its breach is central to many contemporary State responsibility debates.

The prohibition covers both the actual use of force and threats to use force. "Force" in this context means armed force, military action by a State's armed forces or by groups whose conduct is attributable to the State. It does not generally include economic or political pressure, though the line can blur in cases of severe economic coercion.

The ICJ has consistently held that Article 2(4) reflects customary international law, meaning it binds all States regardless of whether they are UN Members. In the Nicaragua case (1986), the Court held that the prohibition on the use of force is a principle of customary international law that has achieved the status of jus cogens (a peremptory norm from which no derogation is permitted).

What constitutes "use of force"?

The clearest cases involve:

- Direct military invasion or attack by State armed forces
- Naval or air bombardment of another State's territory
- Blockade of ports or coasts
- Armed incursions across borders



More contested are indirect uses of force, such as:

- Sending armed bands, groups, irregulars, or mercenaries to carry out armed attacks
- Substantial involvement in such acts
- Providing weapons, training, funding, or logistical support to armed groups operating in another State

The UN General Assembly's Definition of Aggression (Resolution 3314 of 1974) lists specific acts that qualify as aggression, including "the sending by or on behalf of a State of armed bands, groups, irregulars or mercenaries, which carry out acts of armed force against another State of such gravity as to amount to" an armed attack or substantial involvement therein.

Due Diligence Obligations

States have obligations not only to refrain from wrongful conduct themselves but also to prevent certain harmful activities originating from their territory. These are called "due diligence" obligations, to exercise reasonable care and take appropriate measures to prevent harm to other States or their nationals.

Due diligence obligations arise in several contexts:

Prevention of transboundary harm: States must take reasonable steps to prevent activities under their jurisdiction or control from causing significant harm to other States. This principle was established in the Trail Smelter arbitration (1938-1941) between the United States and Canada, where the tribunal held that "no State has the right to use or permit the use of its territory in such a manner as to cause injury by fumes in or to the territory of another."

Prevention of terrorism and use of territory by armed groups: States are obligated to ensure that their territory is not used for armed attacks against other States. The ICJ has recognized this as a customary obligation. In the Nicaragua case, the Court stated that a State must "not allow knowingly its territory to be used for acts contrary to the rights of other States."

In the Armed Activities case (DRC v. Uganda, 2005), the ICJ found that Uganda had an obligation to take appropriate measures to prevent the use of its territory by irregular forces for attacks into the DRC.



What "due diligence" requires:

Due diligence is not an obligation of result (to prevent all harm) but an obligation of conduct (to take reasonable measures given the State's capacities and the circumstances). What is "reasonable" depends on:

- The State's knowledge of the risk or harmful activity
- The State's capacity to prevent or suppress the activity
- The foreseeability and severity of potential harm
- The measures available and their proportionality

A State with limited resources and capacity is not expected to achieve the same level of prevention as a State with sophisticated security and intelligence services. However, every State must make genuine efforts proportional to its means.

Failure to meet due diligence obligations:

If a State fails to meet its due diligence obligations, it may be held responsible for its omission (its failure to act), not for the harmful acts themselves. For example, if armed groups in State A attack State B, and State A knew of the groups' activities and had capacity to prevent them but failed to take reasonable measures, State A breaches its due diligence obligation. However, the armed groups' attacks are not automatically attributed to State A unless the criteria in ARSIWA Articles 4-11 are met.

The Bosnia v. Serbia case (2007) illustrates this distinction. The ICJ found that Serbia had violated its obligation under the Genocide Convention to prevent genocide at Srebrenica. The Court held that Serbia had sufficient influence over Bosnian Serb forces and knowledge of the risk of genocide, yet failed to take measures it could and should have taken to prevent it. However, the Court did not find that the genocide itself was attributable to Serbia, because Serbia did not exercise effective control over the specific operations.

Violations of International Humanitarian Law

International humanitarian law (IHL), also called the law of armed conflict or the law of war, governs conduct during armed conflicts. It aims to limit the effects of armed conflict by protecting persons who are not or no longer participating in hostilities and by restricting means and methods of warfare.



The primary IHL instruments are:

- The four Geneva Conventions of 1949 (nearly universal ratification)
- The two Additional Protocols of 1977
- The Hague Conventions on the laws and customs of war
- Customary international humanitarian law (codified by the ICRC in its Customary IHL Study)
- Core principles of IHL.

Human Rights Obligations in Conflict

International human rights law (IHRL) applies at all times in peace and in armed conflict. While IHL is the primary body of law governing armed conflict, human rights obligations continue to apply and interact with IHL.

The relationship between IHL and IHRL has been clarified by the ICJ:

In the Nuclear Weapons Advisory Opinion (1996), the Court stated that "the protection of the International Covenant on Civil and Political Rights does not cease in times of war" and that "the test of what is an arbitrary deprivation of life... falls to be determined by the applicable *lex specialis*, namely, the law applicable in armed conflict."

In the Wall Advisory Opinion (2004), the Court held that human rights treaties applicable to the Palestinian territories remain applicable during armed conflict, though the specific content of rights may be interpreted through IHL as *lex specialis*.

In the Armed Activities case (DRC v. Uganda, 2005), the ICJ held Uganda responsible for violations of its human rights obligations in the DRC, including killings, torture, and destruction of property.

Key human rights applicable in conflict:

1. **Right to life:** States must protect the right to life. In armed conflict, IHL provides the legal framework for when taking of life is lawful (e.g., killing combatants in hostilities), but arbitrary killings outside hostilities violate human rights law.
2. **Prohibition of torture and cruel, inhuman, or degrading treatment:** This is absolute and non-derogable. It applies to all persons in State custody, including prisoners of war and detained combatants.



3. **Right to liberty and fair trial:** Detention must be lawful, procedurally fair, and subject to review. Both IHL and IHRL regulate detention in armed conflict, with IHL providing more specific rules for different categories of detainees.
4. **Protection of civilians:** Both IHL and IHRL protect civilians from arbitrary deprivation of rights. Occupation law (part of IHL) imposes specific obligations on occupying powers to ensure public order, access to food and medical care, and protection of civilian population.
5. **Freedom from forced displacement:** Forced displacement of civilians is prohibited under IHL except when necessary for security or imperative military reasons, and IHRL protects freedom of movement and residence.

State responsibility for human rights violations:

Human rights treaties typically bind States to respect and ensure rights within their "jurisdiction" or "territory." Questions arise about the scope of jurisdiction in extraterritorial operations.

The European Court of Human Rights has held that a State's jurisdiction extends to areas where it exercises effective control, even outside its territory. In *Al-Skeini v. UK* (2011), the Court held the UK responsible for human rights violations during its occupation of southern Iraq, because it exercised public powers there.

The ICJ has similarly held that human rights obligations apply in occupied territory. In the *Wall Opinion*, the Court held Israel bound by human rights treaties in the occupied Palestinian territories.

Economic Coercion and Unilateral Sanctions

Economic measures taken by one State against another can range from lawful trade policy to unlawful economic coercion. The line between the two is contested and politically charged.

Prohibition of intervention:

The principle of non-intervention, reflected in Article 2(7) of the UN Charter and customary international law, prohibits States from intervening in matters within the domestic jurisdiction of other States. The ICJ in the *Nicaragua case* held that intervention is wrongful when it "bear[s] on matters in which each State is permitted, by the principle of State sovereignty, to decide freely," such as choice of political, economic, social and cultural system. The intervention must also involve "methods of coercion" to be unlawful.



Economic pressure can constitute unlawful intervention if it is designed to coerce another State regarding matters within its domestic jurisdiction and is of sufficient severity. However, not all economic pressure is unlawful. States generally have discretion to decide with whom they trade, on what terms, and subject to what conditions.

UN General Assembly resolutions:

The GA has repeatedly condemned "unilateral coercive measures" as contrary to international law, the UN Charter, and norms of the multilateral trading system. For example:

- Resolution 77/214 (2022) on "Unilateral economic measures as a means of political and economic coercion against developing countries" reaffirms that developed countries should refrain from unilateral coercive economic measures against developing countries.
- Resolutions on specific sanctions regimes (US measures against Cuba, unilateral measures affecting Syria, etc.) call for their removal.

These resolutions are not legally binding but reflect the views of the majority of UN Members (typically with a handful of Western States voting against or abstaining).

Countermeasures:

Sanctions may be lawful if they constitute countermeasures under ARSIWA Articles 49-54 (discussed in Section 5.3). Countermeasures are measures that would normally be unlawful but are permitted as a response to another State's prior internationally wrongful act, provided strict conditions are met.

However, most unilateral sanctions are not framed as countermeasures in the ARSIWA sense, because:

- They are often imposed to pressure a State to change policies that are within its domestic jurisdiction, rather than to respond to a breach of an international obligation owed to the sanctioning State
- They are sometimes imposed by States not injured by any wrongful act
- They do not always meet the procedural requirements (prior demand for compliance, notification, etc.)



Circumstances Precluding Wrongfulness

ARSIWA Chapter V (Articles 20-27) addresses circumstances that preclude the wrongfulness of conduct that would otherwise constitute a breach of an international obligation. These are defenses or justifications that a State may invoke to argue that its conduct, while apparently breaching an obligation, is lawful because of special circumstances.

Importantly, a circumstance precluding wrongfulness does not erase the underlying obligation remains in force. Instead, the circumstance operates as an excuse for non-compliance in the specific instance. If the circumstance no longer applies, the obligation must be fulfilled.

Consent

ARSIWA Article 20 provides: "Valid consent by a State to the commission of a given act by another State precludes the wrongfulness of that act in relation to the former State to the extent that the act remains within the limits of that consent."

Consent was discussed in Section 4.2 in the context of intervention by invitation. The same principles apply to other areas. For example:

- State A consents to State B's commercial aircraft overflying its territory, precluding any wrongfulness under sovereignty and territorial integrity rules
- State A consents to State B's construction of a dam that will affect transboundary water flows, precluding State B's responsibility for that effect (provided State B stays within the scope of consent)

Limits:

Consent cannot preclude wrongfulness when the obligation in question is owed to the international community as a whole or arises under a peremptory norm (jus cogens). For example, a State cannot consent to genocide being committed on its territory the prohibition on genocide is jus cogens and owed erga omnes, so individual consent is irrelevant.

Consent must be clearly established, freely given, and given by an authority competent to bind the State.



Self-Defense

Article 51 of the UN Charter provides: "Nothing in the present Charter shall impair the inherent right of individual or collective self-defence if an armed attack occurs against a Member of the United Nations, until the Security Council has taken measures necessary to the maintenance of international peace and security."

Self-defense is a circumstance precluding wrongfulness for uses of force that would otherwise violate Article 2(4). ARSIWA Article 21 states: "The wrongfulness of an act of a State is precluded if the act constitutes a lawful measure of self-defence taken in conformity with the Charter of the United Nations."

Requirements for lawful self-defense

1. **Armed attack:** Self-defense may be invoked only in response to an armed attack. The ICJ in the Nicaragua case distinguished between the "most grave forms of the use of force (those constituting an armed attack)" and "other less grave forms". Minor border incidents or isolated acts by non-State actors may not reach the threshold of an armed attack.
2. **Necessity:** The defensive use of force must be necessary, there must be no reasonable non-forceful means to repel the attack or protect against imminent attack.
3. **Proportionality:** The force used in self-defense must be proportionate to the armed attack. Self-defense authorizes measures to repel or stop the attack, not to punish the aggressor or achieve unrelated objectives.
4. **Reporting:** Article 51 requires that measures taken in self-defense be "immediately reported" to the Security Council.
5. **Temporariness:** Self-defense is a temporary right until the Security Council takes necessary measures. In practice, because the Council is often unable to act, this limitation has limited effect.

Controversial expansions:

Anticipatory or preemptive self-defense: Article 51 speaks of self-defense "if an armed attack occurs," implying the attack must have begun. However, some States argue that self-defense includes the right to use force to prevent an imminent armed attack so-called anticipatory self-defense. Supporters invoke the Caroline incident (1837) and its formulation requiring showing "a necessity of self-defence, instant, overwhelming, leaving no choice of means, and no moment for deliberation."



The ICJ has not definitively ruled on whether anticipatory self-defense is lawful, though some judges have suggested it may be permitted in narrow circumstances of truly imminent attack.

Even more controversial is "preemptive self-defense" against non-imminent threats. The US National Security Strategy (2002) asserted a right to use force preemptively against emerging threats, particularly weapons of mass destruction in the hands of hostile States or terrorists. Most international lawyers and States reject this expansion as inconsistent with Article 51 and the prohibition on the use of force.



Self-defense against non-State actors: Article 51 refers to armed attacks "against a Member of the United Nations," traditionally understood to mean attacks by one State against another. However, after the 9/11 attacks, the question arose whether a State may use force in self-defense against non-State armed groups operating from another State's territory.



Security Council Resolutions 1368 and 1373 (2001) recognized the United States' right to self-defense after 9/11, and most States accepted that self-defense could apply to attacks by non-State actors if the attack was of sufficient scale and effects.

The harder question is whether the State from whose territory the attack was launched must be involved or complicit. The ICJ in the Wall and Armed Activities cases suggested that self-defense under Article 51 applies to attacks attributable to a State, not to attacks by groups acting independently.

However, State practice since 2001 shows many States (including the US, Turkey, Israel) asserting self-defense rights to use force against non-State armed groups in other States' territories even when those groups' conduct is not attributable to the territorial State. Justifications include:

- The territorial State is "unable or unwilling" to prevent the armed group from using its territory for attacks
- The armed group's attacks constitute an ongoing armed attack that the victim State has a right to defend against

This "unable or unwilling" doctrine is controversial. Supporters argue it balances the victim State's right to self-defense with the territorial State's sovereignty when the territorial State cannot or will not address the threat. Critics argue it eviscerates the prohibition on the use of force and invites abuse any State can claim another State is "unwilling" to address a security threat and use that as pretext for military intervention.

Countermeasures

Countermeasures are measures taken by an injured State in response to another State's internationally wrongful act, which would be unlawful if taken in other circumstances but are permitted as a means of inducing the responsible State to comply with its obligations.

ARSIWA Articles 49-54 regulate countermeasures in detail.legal.

Conditions for lawful countermeasures (Article 49):

1. Purpose: Countermeasures must be aimed at inducing the responsible State to comply with its obligations cessation of the wrongful act and reparation. They cannot be punitive or aimed at other goals.
2. Temporariness: Countermeasures must be temporary and must be terminated when the responsible State complies.



3. Reversibility: Countermeasures should be reversible to the extent possible, so that if the responsible State complies, the situation can be restored.

Limits on countermeasures (Articles 50-51):

Article 50 prohibits countermeasures that would violate certain fundamental obligations:

- Prohibition on the threat or use of force (no military countermeasures)
- Obligations for the protection of fundamental human rights
- Obligations of a humanitarian character prohibiting reprisals (e.g., IHL protections)
- Other obligations under peremptory norms

Article 51 requires that countermeasures:

- Must be proportionate to the injury suffered, taking into account the gravity of the wrongful act and the rights in question
- Must respect the inviolability of diplomatic or consular agents, premises, archives, and documents
- Must not violate dispute-settlement obligations (e.g., if a treaty requires arbitration, the injured State cannot refuse arbitration as a countermeasure)

Procedural requirements (Article 52):

Before taking countermeasures, the injured State must:

1. Call upon the responsible State to fulfill its obligations
2. Notify the responsible State of its intention to take countermeasures
3. Offer to negotiate

Countermeasures must be terminated if the responsible State fulfills its obligations or if the matter is submitted to a tribunal with binding authority.



Proportionality:

Proportionality is both a limit and a requirement. The ILC Commentary clarifies that proportionality in countermeasures is not measured by equivalence of the economic or other effects, but by reference to the aim of inducing compliance. Thus, if a State commits a minor breach but refuses to comply, more substantial countermeasures may be proportionate if necessary to achieve compliance.ejil+1

Collective countermeasures:

ARSIWA Article 54 leaves open the question of whether States other than the injured State may take countermeasures. It states: "This chapter does not prejudice the right of any State, entitled under article 48, paragraph 1, to invoke the responsibility of another State, to take lawful measures against that State to ensure cessation of the breach and reparation in the interest of the injured State or of the beneficiaries of the obligation breached."

This deliberately ambiguous language reflects disagreement in the ILC about whether "lawful measures" includes countermeasures taken by non-injured States. State practice on collective or third-party countermeasures is limited and contested.qil-qdi+1

Necessity

ARSIWA Article 25 provides that necessity may preclude wrongfulness "if the act:

- (a) is the only way for the State to safeguard an essential interest against a grave and imminent peril; and
- (b) does not seriously impair an essential interest of the State or States towards which the obligation exists, or of the international community as a whole."

Article 25 further states that necessity may not be invoked if the international obligation in question excludes necessity, or if the State has contributed to the situation of necessity.

Necessity is an exceptional circumstance and is interpreted narrowly. The ILC Commentary notes that necessity "has been invoked to support failing dictatorships, to shield the repudiation of foreign debts, and to justify the appropriation of property of foreign nationals". Courts and tribunals have been skeptical of necessity claims.

Requirements:

1. **Essential interest at stake:** The interest must be truly essential typically survival of the State, a significant portion of its population, or its ecological preservation. Economic interests, even severe, typically do not qualify.



2. **Grave and imminent peril:** The peril must be objectively grave (not merely serious inconvenience) and imminent (close in time, not hypothetical or distant).
3. **Only way to safeguard:** There must be no other lawful means available. If the State can protect its interest by complying with its obligations or by other lawful measures, necessity does not apply.
4. **No serious impairment to others:** The measure taken must not seriously harm the essential interests of other States or the international community. This requirement balances the invoking State's needs against others' rights.
5. **State did not contribute to the situation:** A State that caused or contributed to the situation of necessity cannot invoke necessity to justify non-compliance.
6. **Obligation does not exclude necessity:** Some treaties explicitly exclude necessity (e.g., by stating "no derogation is permitted"), in which case Article 25 cannot be invoked.

Case law:

In the *Gabčíkovo-Nagymaros Project* case (Hungary v. Slovakia, 1997), Hungary claimed necessity to justify suspending and abandoning a joint dam project, citing environmental concerns. The ICJ rejected the claim, finding that Hungary had not proven grave and imminent peril, that alternatives were available, and that Hungary had contributed to the situation by its own actions.

In arbitrations arising from Argentina's 2001-2002 economic crisis, several tribunals considered whether Argentina could invoke necessity to justify measures breaching investment treaties (freezing tariffs, converting dollar obligations to pesos, etc.). Most tribunals found that economic crisis, even severe, did not constitute the kind of essential-interest peril envisaged by Article 25, though one tribunal accepted a customary law necessity defense in limited circumstances (*CMS Gas Transmission v. Argentina* vs. *LG&E Energy v. Argentina*).

Consequences of Responsibility

Once State responsibility is established conduct is attributable to the State and breaches an international obligation, with no circumstance precluding wrongfulness legal consequences follow. ARSIWA Part Two addresses these consequences.



Cessation and Guarantees of Non-Repetition

Cessation (Article 30):

"The State responsible for the internationally wrongful act is under an obligation:

- (a) to cease that act, if it is continuing;
- (b) to offer appropriate assurances and guarantees of non-repetition, if circumstances so require."

If the wrongful conduct is ongoing (a continuing breach), the responsible State must stop it. For example:

- If a State's forces are unlawfully occupying another State's territory, they must withdraw
- If a State is violating an arms control treaty, it must cease the violations
- If a State is failing to prevent its territory from being used for attacks against another State, it must take measures to stop such use

Cessation is fundamental because the primary purpose of responsibility is to uphold respect for international law, not merely to compensate for past harms.

Guarantees of non-repetition:

If the circumstances of the wrongful act suggest a risk of repetition, the responsible State may be required to provide assurances and guarantees that it will not repeat the conduct. This can include:

- Changes to domestic law or regulations that enabled or failed to prevent the breach
- Disciplinary or criminal proceedings against officials responsible for the breach
- Improved monitoring and reporting systems
- Training programs for officials on international obligations



The ICJ has addressed guarantees of non-repetition in several cases. In *LaGrand* (Germany v. US, 2001), the Court held that the US's assurance that it would ensure future compliance with consular notification obligations constituted an appropriate guarantee. In *Avena* (Mexico v. US, 2004), the Court found US assurances insufficient and called for concrete steps including review and reconsideration of convictions.

Restitution and Compensation

Reparation (Article 31):

"The responsible State is under an obligation to make full reparation for the injury caused by the internationally wrongful act."

The ILC Commentary notes that this principle was established by the Permanent Court of International Justice in the *Factory at Chorzów* case (1928): "reparation must, as far as possible, wipe out all the consequences of the illegal act and reestablish the situation which would, in all probability, have existed if that act had not been committed."

Forms of reparation (Articles 34-37):

Reparation can take three forms:

- 1. Restitution (Article 35):** Restoring the situation that existed before the wrongful act, to the extent this is not materially impossible and does not involve a burden out of all proportion to the benefit of restitution instead of compensation. Example: Returning unlawfully seized territory, property, or artworks; releasing unlawfully detained persons; revoking or annulling unlawful legal measures.
- 2. Compensation (Article 36):** Payment of money to cover financially assessable damage resulting from the wrongful act, insofar as damage is not made good by restitution. Compensation covers actual material damage (property destruction, lost revenue, physical injury) and, in appropriate cases, moral damage (pain and suffering, affront to dignity). Compensation must be full, it must cover all direct damage and, in some cases, loss of profits or other consequential harm that is sufficiently certain and foreseeable.
- 3. Satisfaction (Article 37):** Measures to acknowledge the breach, express regret, or make symbolic reparation when material reparation (restitution and compensation) does not fully repair the injury. Forms of satisfaction include:



- **Acknowledgment of the breach and expression of regret or formal apology**
- **Declaration of the wrongfulness of the act by an international court or tribunal**
- **Prosecution and punishment of individuals responsible for the wrongful conduct**
- **Symbolic payments or commemorative measures**

Satisfaction must not be disproportionate to the injury and cannot take forms humiliating to the responsible State.

Collective Countermeasures

As discussed in Section 5.3, countermeasures are generally the prerogative of injured States. However, Article 54 of ARSIWA leaves open whether States other than the injured State may take "lawful measures" against a responsible State in response to breaches of obligations owed to a group or to the international community.

Arguments for collective countermeasures:

1. **Effectiveness:** In cases of serious breaches (e.g., aggression, genocide, crimes against humanity), the injured State may be unable to take meaningful countermeasures on its own (it may be the victim of ongoing aggression or may lack economic leverage). Collective action by multiple States is more likely to induce compliance.
2. **Obligations erga omnes:** If an obligation is owed to all States or to the international community, and all States have a legal interest in compliance (ARSIWA Article 48), it follows that all States should be able to take measures to vindicate that interest.
3. **Filling enforcement gaps:** The Security Council is often paralyzed by veto power. If the Council cannot authorize enforcement measures, and if only directly injured States can take countermeasures, serious breaches may go without effective response. Collective countermeasures by willing States could fill this gap.



Obligations of Non-Recognition and Non-Assistance

When a State commits a serious breach of an obligation arising under a peremptory norm (jus cogens), ARSIWA Article 41 imposes specific duties on all other States: legal.un+1

"1. States shall cooperate to bring to an end through lawful means any serious breach within the meaning of article 40.

2. No State shall recognize as lawful a situation created by a serious breach within the meaning of article 40, nor render aid or assistance in maintaining that situation."

Serious breach defined (Article 40):

A breach is "serious" if it "involves a gross or systematic failure by the responsible State to fulfil the obligation" arising under a peremptory norm. Peremptory norms (jus cogens) include prohibitions on aggression, genocide, slavery, torture, and apartheid.

Duty of non-recognition:

When a serious breach creates a new situation (e.g., annexation of territory through aggression, establishment of an apartheid regime), other States must not recognize that situation as lawful. This means:

- Not recognizing purported legal title to territory acquired by aggression
- Not treating discriminatory laws of an apartheid regime as valid
- Not accepting arrangements imposed through serious breaches

Application to territorial acquisition:

The principle of non-recognition of territorial gains from aggression is well-established in international law. The Stimson Doctrine (1932) stated that the US would not recognize situations brought about by means contrary to the Kellogg-Briand Pact. The UN Charter and subsequent practice have reinforced this principle.



Duty of non-assistance:

States must not render aid or assistance in maintaining a situation created by a serious breach. This duty is narrower than the general prohibition on aiding wrongful acts (Article 16). Article 41 specifically addresses aid that helps maintain the unlawful situation, not aid that merely assists the responsible State generally.

Examples might include:

- Providing financial or material support that entrenches an illegal occupation
- Recognizing or enforcing legal acts of an illegal regime
- Facilitating trade or investment that consolidates territorial acquisition through aggression

The precise scope of this duty is unsettled. Does it prohibit all economic relations with an illegally annexed territory? Does it require active measures to prevent private actors from assisting maintenance of the situation?

Duty to cooperate:

Article 41(1) requires States to "cooperate to bring to an end through lawful means any serious breach." This duty is phrased broadly and does not specify particular measures. Cooperation might include:

- Supporting UN resolutions condemning the breach
- Participating in sanctions regimes or other collective measures
- Providing information or expertise to fact-finding bodies
- Advocating for accountability mechanisms
- Offering good offices or mediation to facilitate cessation of the breach

I'll restructure the conflicts section to be more concise and factual, removing the "relevance" portions and letting delegates draw their own conclusions:



Contemporary Conflict Situations

Russia–Ukraine Conflict

Background

Russia annexed Crimea in March 2014 following a disputed referendum and supported separatist forces in Donetsk and Luhansk regions of eastern Ukraine from 2014 onward. On 24 February 2022, Russia launched a full-scale invasion of Ukraine, the largest military operation in Europe since World War II.

Timeline

- 2014: Annexation of Crimea; armed conflict begins in Donbas region between Ukrainian forces and Russia-backed separatists
- 2014–2021: Low-intensity conflict continues; Minsk Agreements fail to resolve dispute
- 24 February 2022: Russia launches full-scale invasion from multiple directions
- March–April 2022: Russian forces withdraw from northern Ukraine after failure to capture Kyiv
- 2022–2023: Conflict stabilizes along eastern and southern fronts
- June 2023: Kakhovka Dam destroyed, causing massive flooding
- 2024–2026: War of attrition continues; international support sustains Ukrainian defense

Current Status

Active armed conflict ongoing as of March 2026. Russia occupies approximately 18% of Ukrainian territory, including Crimea and parts of Donetsk, Luhansk, Zaporizhzhia, and Kherson oblasts. Over 10 million Ukrainians displaced. Major cities including Mariupol, Bakhmut destroyed.

Cases and UN Measures

- **General Assembly:** ES-11/1 (March 2022) deploring aggression with 141 votes in favor; ES-11/4 (October 2022) condemning annexation attempts



- **ICJ:** Ukraine filed four cases against Russia; Court issued provisional measures in Genocide Convention case (March 2022) ordering Russia to suspend military operations and Russia non-compliant
- **ICC:** Arrest warrant issued for President Putin and others (March 2023) for war crimes related to forced deportation of Ukrainian children
- **Sanctions:** US, EU, UK, Canada, Japan, Australia imposed coordinated sanctions including SWIFT exclusions, Central Bank asset freezes (\$300+ billion), energy restrictions, technology export controls

Israel–Palestine Situation



Background

Israel has occupied the West Bank and East Jerusalem since the 1967 Six-Day War. Gaza's status is contested: Israel withdrew settlements in 2005 but maintains control over airspace, territorial waters, and most land crossings. Israeli settlement construction in the West Bank continues despite international condemnation. The Israeli-Palestinian conflict has involved multiple armed confrontations.



Timeline

- **1967:** Israel captures West Bank, East Jerusalem, Gaza, Golan Heights, Sinai in Six-Day War
- **1987–1993:** First Intifada; Oslo Accords establish Palestinian Authority
- **2000–2005:** Second Intifada; Israel constructs separation barrier
- **2005:** Israel withdraws settlements and permanent military presence from Gaza
- **2007:** Hamas takes control of Gaza; Israel and Egypt impose blockade
- **2008–2009, 2012, 2014, 2021:** Major military operations in Gaza
- **October 7, 2023:** Hamas and allied groups attack southern Israel, killing ~1,200 (mostly civilians), taking 240+ hostages
- **October 2023–present:** Israeli military operations in Gaza; over 44,000 Palestinian deaths reported by March 2025

Current Status

West Bank remains under Israeli military occupation with expanding settlements. Gaza under Israeli siege and military operations since October 2023; most of 2.3 million population displaced internally; infrastructure and housing extensively destroyed. Humanitarian crisis with limited access to food, water, medical supplies.

Cases and UN Measures

- **ICJ Advisory Opinion (July 2024):** Found Israel's occupation unlawful due to indefinite duration (57+ years), annexation policies, denial of self-determination; ordered Israel to end occupation and provide reparations; all States have non-recognition and non-assistance duties
- **ICJ Contentious (South Africa v. Israel, 2023–present):** Alleging genocide in Gaza under Genocide Convention; Court issued multiple provisional measures orders requiring Israel to prevent genocide, ensure humanitarian access, preserve evidence.



- **General Assembly:** Multiple resolutions condemning settlement expansion, calling for two-state solution, demanding humanitarian access to Gaza
- **Security Council:** Resolution 2334 (2016) declaring settlements illegal; recent resolutions on Gaza vetoed by US or blocked

Syrian Civil War

Background

Syria's civil war began in March 2011 following government crackdowns on pro-democracy protests. The conflict fragmented into multi-party warfare involving the Syrian government (backed by Russia and Iran), various opposition groups (backed by Turkey, Gulf States, previously US), Kurdish-led Syrian Democratic Forces (backed by US), ISIS, and jihadist factions including Hay'at Tahrir al-Sham.

Timeline

- **March 2011:** Protests begin in Daraa; government responds with violent crackdown
- **2011–2012:** Protests escalate to armed rebellion; Free Syrian Army forms
- **2013:** Chemical weapons attack in Ghouta kills hundreds; US-Russia agreement on disarmament
- **2014–2017:** ISIS captures large territories; international coalition forms to combat ISIS
- **September 2015:** Russia intervenes militarily at Assad government's invitation
- **2016–2017:** Government recaptures Aleppo with Russian air support
- **2017–2018:** Government regains control of most major population centers
- **2018:** Multiple chemical weapons attacks documented by OPCW; US, UK, France conduct limited strikes
- **2019–present:** Conflict continues at reduced intensity; north remains contested



Current Status

Assad government controls approximately 70% of territory. Turkish forces occupy border regions in north. US forces remain in northeast supporting Syrian Democratic Forces. Over 500,000 dead; 13+ million displaced (6.8 million internally, 6.6 million refugees). Multiple de facto zones of control; no political settlement.

Cases and UN Measures

- UN Commission of Inquiry (2011–present): Documented war crimes and crimes against humanity by all parties; reports cite indiscriminate attacks, chemical weapons use, torture, sexual violence
- OPCW Investigation and Identification Team: Attributed multiple chemical weapons attacks (sarin, chlorine) to Syrian government forces (2013, 2017, 2018)
- International, Impartial and Independent Mechanism (IIIM): Established by General Assembly (2016) to collect and preserve evidence for future prosecutions
- Security Council: Russia and China vetoed 16+ resolutions on Syria since 2011, blocking referral to ICC and accountability mechanisms
- Sanctions: US, EU imposed sanctions on Syrian government officials, military entities, financial institutions; Caesar Act (US, 2020) sanctioning reconstruction sector

Yemen Civil War

Background

Yemen's civil war escalated in 2015 when Houthi forces (Ansar Allah movement) advanced from northern strongholds, captured the capital Sana'a, and moved toward southern cities. Saudi Arabia and UAE led a military coalition intervening at the request of President Hadi's government to restore his authority.



Yemen: *votes against use
of force during the Iraq/
Kuwait conflict*
Saudi Arabia to 800,000
Yemenis in their territory:



Timeline

- 2011–2012: Arab Spring protests lead to transition agreement; President Saleh steps down
- 2014: Houthis capture Sana'a; form alliance with former President Saleh
- March 2015: Saudi-UAE coalition begins military intervention with airstrikes
- 2015–2018: Coalition conducts extensive air campaign; ground stalemate develops
- 2017: Saleh-Houthi alliance collapses; Saleh killed by Houthis



- 2018–2019: Humanitarian crisis intensifies; cholera outbreaks
- 2019: UAE reduces military presence; southern separatists backed by UAE fight government forces
- 2022: UN-brokered ceasefire (April–October); temporary reduction in violence
- 2023–present: Houthis attack ships in Red Sea in solidarity with Gaza; US-UK conduct strikes on Houthi positions

Current Status

Houthis control Sana'a and most populous northern regions. Internationally recognized government controls southern and eastern areas but faces challenges from UAE-backed Southern Transitional Council. Over 377,000 dead (150,000+ from direct violence); 4.5 million displaced. Described as world's worst humanitarian crisis with 21.6 million requiring assistance. Cholera, malnutrition, collapsed infrastructure.

Cases and UN Measures

- Security Council: Arms embargo and targeted sanctions on Houthi leaders; Panel of Experts documents Iranian arms transfers, coalition violations, Houthi attacks
- UN Group of Eminent Experts (2017–2022): Documented violations by all parties including airstrikes on civilians, torture, child soldier recruitment, obstruction of humanitarian access
- General Assembly: Multiple resolutions calling for ceasefire, humanitarian access, political settlement
- No ICJ cases filed as of March 2026



- **Sanctions:** US, EU sanctions on Houthi leaders; US redesignated Houthis as terrorist organization (2024) following Red Sea attacks

Myanmar Rohingya Crisis and Military Coup

Background

Myanmar's military (Tatmadaw) conducted "clearance operations" against Rohingya Muslim population in Rakhine State in 2017 following attacks by Rohingya militant group ARSA. Over 700,000 Rohingya fled to Bangladesh. In February 2021, the military seized power in a coup, overthrowing the elected government led by Aung San Suu Kyi.

Timeline

- **August 2017:** ARSA attacks police posts; military launches operations in northern Rakhine State
- **August–December 2017:** Mass killings, sexual violence, village burnings documented; 740,000+ flee to Bangladesh
- **2018–2020:** UN Fact-Finding Mission concludes genocide occurred; ICC Prosecutor opens investigation
- **February 1, 2021:** Military stages coup, detaining elected leaders
- **2021–present:** Military cracks down violently on protests and armed resistance; thousands killed, tens of thousands detained

Current Status

Military junta controls government but faces armed resistance from ethnic armed organizations and People's Defense Forces. Over 3,000 civilians killed since coup; 1.5+ million internally displaced. Rohingya remain in camps in Bangladesh with minimal repatriation. Economy collapsed; poverty doubled. Armed conflicts intensify across multiple regions.



Cases and UN Measures

- **ICJ (The Gambia v. Myanmar, 2019–present):** Alleging genocide under Genocide Convention; Court issued provisional measures (January 2020) ordering Myanmar to prevent genocide, preserve evidence, report on compliance, Myanmar initially complied but cooperation reduced after coup
- **ICC:** Investigation into crimes against humanity (deportation of Rohingya to Bangladesh); Myanmar refuses cooperation
- **UN Independent Investigative Mechanism for Myanmar (IIMM, 2018–present):** Collecting evidence for future prosecutions
- **General Assembly:** Multiple resolutions condemning coup, calling for restoration of democracy, arms embargo
- **Sanctions:** US, EU, UK, Canada imposed targeted sanctions on military officials and military-owned enterprises; arms embargoes
- **ASEAN:** Five-Point Consensus (April 2021) calling for ceasefire, dialogue, humanitarian access largely unimplemented

Sudan Conflict

Background

Sudan experienced popular uprising in 2019 that overthrew President Omar al-Bashir (under ICC indictment for genocide in Darfur). A transitional government shared power between military and civilians. In April 2023, armed conflict erupted between rival military factions: the Sudanese Armed Forces (SAF) led by General Abdel Fattah al-Burhan and the Rapid Support Forces (RSF) led by Mohamed Hamdan Dagalo ("Hemedti").





Timeline

- 2003–present: Darfur conflict; ICC issues arrest warrants for Bashir and others for genocide, crimes against humanity
- April 2019: Popular protests oust Bashir; transitional government formed
- October 2021: Military coup disrupts transition; Burhan assumes power
- April 15, 2023: Fighting breaks out between SAF and RSF in Khartoum
- 2023–2024: Conflict spreads nationwide; ethnic targeting intensifies in Darfur and Kordofan
- 2025–2026: War continues with no negotiated settlement; humanitarian access severely restricted

Current Status

Active armed conflict across multiple regions as of March 2026. RSF controls parts of Khartoum and large areas in Darfur and Kordofan; SAF controls other areas. Over 15,000 killed; 10+ million displaced (7.7 million internally, 2.3+ million to neighboring countries). Allegations of ethnic cleansing in Darfur. Famine conditions in multiple regions.

Cases and UN Measures

- ICC: Pre-existing arrest warrants for Bashir and others remain active; Prosecutor monitoring current situation
- UN Fact-Finding Mission for Sudan: Established (October 2023) but faces severe access restrictions
- Security Council: Multiple resolutions calling for ceasefire, humanitarian access; divisions between members prevent stronger measures
- General Assembly: Resolutions condemning violence, calling for civilian protection
- Sanctions: US, EU imposed sanctions on SAF and RSF officials; arms embargoes complicated by enforcement challenges



- **African Union: Suspended Sudan's membership; calls for negotiated settlement**

Cyber Operations

Background

States increasingly conduct or sponsor cyber operations for espionage, sabotage, coercion, and information warfare. Attribution is technically and politically challenging due to operations conducted through proxies, false flags, and compromised third-party infrastructure.

Major Incidents

Not Petya (June 2017): Ransomware attributed to Russian GRU initially targeted Ukrainian infrastructure but spread globally, causing \$10+ billion in damages to companies in Europe, US, Asia.

Solar Winds (December 2020): Espionage campaign attributed to Russian SVR compromised US government agencies, critical infrastructure companies, and private sector entities globally through supply chain attack.

Colonial Pipeline (May 2021): Ransomware attack by DarkSide group (Russia-based) shut down major US fuel pipeline for six days, causing fuel shortages and price spikes.

Ukraine conflict cyber operations (2022–present): Russia conducted pre-invasion website defacements (January 2022), wiper malware attacks during invasion (February 2022), and ongoing attacks on Ukrainian energy, communications, government systems.

Election interference (2016–present): Russia attributed with operations targeting 2016 US election, 2017 French election, others through social media manipulation, hacking, information operations.

Current Status

Cyber operations are routine component of geopolitical competition. States conduct operations while maintaining plausible deniability. No international agreement specifically governs cyber operations; existing international law (sovereignty, non-intervention, use of force) applies but interpretation contested.



International Responses

- No binding treaty specific to cyber operations
- UN Group of Governmental Experts (GGE): Multiple sessions (2004–2021) produced reports affirming applicability of international law but failed to reach consensus on specifics
- UN Open-Ended Working Group (OEWG, 2019–2025): Broader participation; 2021 report affirmed international law applies but left key questions unresolved
- Tallinn Manual 2.0 (2017): Non-binding expert study analyzing how international law applies to cyber operations
- Bilateral consultations: US-Russia, US-China dialogues on cyber issues with limited results
- Attribution statements: States increasingly publicly attribute major cyber operations but targets typically deny responsibility
- Sanctions: US, EU sanctioned individuals and entities for cyber operations but enforcement limited

Reparations and Remedies

ARSIWA Articles 34-37 establish full reparation for internationally wrongful acts through three forms: restitution (restoring the status quo ante), compensation (financial payment for assessable damage), and satisfaction (non-monetary measures like apologies or guarantees of non-repetition). The DRC v. Uganda reparations judgment (2022) illustrates practical challenges: the Court awarded \$325 million far below DRC's \$11.7 billion claim citing evidentiary difficulties in mass conflict scenarios and using equitable approaches rather than precise calculations

Key challenges include quantifying intangible harms, establishing causation in multi-party conflicts, and ensuring reparations reach victims. Distribution mechanisms range from individual payments to collective community projects, each raising questions of verification, timing, and corruption risks. The UN Compensation Commission (Iraq-Kuwait) stands as the most successful large-scale mechanism, funded by Iraqi oil revenues and processing over 2.7 million claims.



Sovereign asset freezes present novel questions. Over \$300 billion in Russian Central Bank reserves remain frozen following the 2022 invasion, sparking debate over whether frozen assets can be seized for reparations without court authorization, or whether only proceeds should fund reconstruction. These debates intersect with sovereign immunity principles and concerns about destabilizing the international financial system.

Against major powers, enforcement remains profoundly limited. No superior authority exists to compel compliance, and Security Council vetoes protect allies. Yet responsibility still generates effects: establishing legal records, mobilizing political pressure, preserving evidence for future accountability, and affirming norms despite immediate impunity.

Third-State Countermeasures: Expanding Beyond Direct Injury

ARSIWA Article 54 deliberately leaves unsettled whether States not directly injured may take countermeasures for breaches of erga omnes obligations. The ILC could not reach consensus, creating a placeholder for future development through State practice.

Current sanctions on Russia (post-2022) and Myanmar (post-2021) could crystallize practice supporting third-State countermeasures for serious violations, though sanctioning States have not explicitly invoked Article 54. This ambiguity reflects competing concerns: enforcement gaps when the Security Council is paralyzed versus abuse risks if powerful States use "countermeasures" as pretext for geopolitical coercion.

Proposed frameworks range from prohibition (only directly injured States may take countermeasures) to permission with strict safeguards: collective action requirements, limitation to jus cogens violations, Security Council exhaustion, proportionality review, humanitarian exemptions, and sunset clauses. Middle-ground proposals suggest General Assembly authorization when the Council is blocked, or mandatory judicial review to verify breach before countermeasures.

The central tension is enforcement versus selectivity. Without collective countermeasures, serious violations may face no consequences when committed by powerful States or their allies. Yet without clear limits, the doctrine risks legitimizing economically coercive unilateral measures dressed as law enforcement.



Non-State Actors and Attribution Challenges

Modern conflicts involve PMCs, terrorist groups, and de facto authorities whose conduct may or may not be attributable to States. Wagner Group exemplifies attribution complexity: formally private but deeply integrated with Russian military objectives, likely meeting Article 8's "direction and control" threshold or Article 5's "empowered entity" standard.

For armed groups (Hezbollah, Taliban pre-2021), attribution typically fails unless States exercise operational control over specific acts. More commonly, Article 16's "aid or assistance" standard applies when States support violations with knowledge, or due diligence obligations require States to prevent attacks from their territory.

Corporate conduct raises distinct questions. States may be responsible under Article 5 if corporations are state-owned entities exercising governmental functions, or under failure-to-regulate doctrines when inadequate oversight breaches environmental or human rights obligations. The UN Guiding Principles on Business and Human Rights (2011) clarify State duties to protect against corporate abuses, though enforcement remains weak for transnational operations.

State collapse and fragmentation create legal personality gaps. When States lack capacity to fulfill due diligence obligations, non-State actors operate with impunity and victims have no responsible entity to pursue. Whether major non-State actors exercising sustained territorial control should bear international responsibilities analogous to States remains unresolved.

This BG has now come to an end, we have shown you what those in power don't want you to see. Here exists a world with one sided rules and controls, with manufactured borders or boundaries. We offer to you a world where anything is possible. Where we go from here is a choice we leave to you. Choose your path wisely, trust selectively and argue for what you believe is right.

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